

June 21, 2022

Secretary Gina M. Raimondo
U.S. Department of Commerce
1401 Constitution Ave NW
Washington, DC 20230
[Sent Electronically]

Dear Secretary Raimondo:

We commend President Joe Biden and European Commission (EC) President Ursula von der Leyen on the recent announcement agreeing on principle to a new framework for trans-Atlantic data flows. We recognize and applaud your staff's hard work, dedication in the ongoing negotiations over the past two years to bring us to this very important milestone.

ANA – Association of National Advertisers, through its acquisition of the Data & Marketing Association (DMA), has had a long history of working with the U.S. Department of Commerce on trans-Atlantic data frameworks (both Safe Harbor and Privacy Shield), and serves as a trusted partner and dispute resolution provider since the Safe Harbor Framework's inception in May 2001. We value our continued partnership in providing a reliable and trusted mechanism for the free flow of data.

As you know, many U.S. companies are seeking legal certainty for the trans-Atlantic data flows powering their businesses since the EU Court of Justice of the European Union struck down the Privacy Shield agreement in July 2020. Small and mid-sized companies have been significantly impacted by this decision since Privacy Shield was the most affordable and accessible option for companies to comply with the adequacy requirements for transferring data from the EU to the United States. By restoring this framework, we will once again provide an accessible and effective means for transferring data and growing our global economy.

The free flow of data is critical for U.S. advertisers and marketers and is essential for the growth of our economy, jobs, and wages. The total impact of advertising represented 18.5% of the U.S. GDP with advertising supporting \$7.1 trillion in sales activity in 2020. Advertising also supported 28.5 (or 19.5%) of the 145.7 million U.S. jobs in 2020. Every direct advertising job supported another 51 jobs across industries ([*IHS Markit, The Economic Impact of Advertising on the U.S. Economy Feb. 4, 2022*](#)).

We are greatly encouraged by President Biden and EC President von der Leyen's joint announcement. This announcement is a positive development, and we appreciate the high-level support for a new Trans-Atlantic Data Privacy Framework. It is critical to have a sound, trusted and legal mechanism for companies to have confidence, once again, in transferring data from the EU to the United States. As our economy continues to meet challenges, it is critical to strengthen our global trade opportunities to help bolster growth for our companies and citizens.

We look forward to seeing the details of the new provisions related to providing appropriate protections from government access to data and if there will be any changes to redress mechanisms. We encourage

the Administration to work expeditiously on the Framework and reestablish a widely accessible and legal means for transferring data from the EU to the United States.

Sincerely,

Christopher Oswald
EVP, Head of Government Relations
ANA – Association of National Advertisers

Lisa Shosteck
Privacy Shield Dispute Resolution Director
ANA – Association of National Advertisers

cc: Alex Greenstein, Director of Privacy Shield, U.S. Department of Commerce
privacyshield@trade.gov